

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 17374/16
Nijat PANAHOV and Others
against Azerbaijan
(see appended table)

The European Court of Human Rights (Fifth Section), sitting on 21 January 2021 as a Committee composed of:

Ganna Yudkivska, *President,*
Ivana Jelić,
Arnfinn Bårdsen, *judges,*

and Liv Tigerstedt, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 29 March 2016,

Having regard to the declaration submitted by the respondent Government requesting the Court to strike the application out of the list of cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants is set out in the appended table.

The applicants were represented by Mr J. Wise, a lawyer practising in Strasbourg.

The applicants' complaints under Article 5 (alleged violation of the rights to liberty and security on account of arbitrariness of their arrest), Article 8 (alleged violation of the rights to respect for private and family life and home on account of unlawful interference by the police in private apartment of one of the applicants), Articles 9 and 11 (alleged unlawful interference with their rights to freedom of religion and freedom of assembly) as well as Article 14 of the Convention (alleged discrimination due to their religious beliefs) were communicated to the Azerbaijani Government ("the Government").

THE LAW

The Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issues raised by these complaints. They further requested the Court to strike out the application in accordance with Article 37 of the Convention

The declaration provided as follows:

> "1. The Government of the Republic of Azerbaijan hereby wishes to express – by way of unilateral declaration – acknowledgement of the fact that there has been a violation of the applicants' rights guaranteed under the Convention.
>
> 2. The Government is prepared to pay to the applicants, Nijat Adil oglu Panahov, Shalala Murad gızı Atamova, Mehpara Aydın gizi Jafarova and Lala Mugdat gizi Yusifova the sum of EUR 4,000 (four thousand euros) to each applicant to cover any and all non-pecuniary damage, plus any tax that may be chargeable to the applicants. This sum shall be free of any tax that may be applicable and shall be payable within three months from the date of the notification of the striking-out judgment of the Court pursuant to Article 37 § 1 (c) of the European Convention on Human Rights. From the expiry of the above-mentioned period, simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.
>
> ...
>
> 4. In the light of above, the Government would suggest that the circumstances of the present cases allow the Court to reach the conclusion that there exists 'any other reason', as referred to in Article 37 § 1 (c) of the Convention, justifying to discontinue the examination of the application, and that, moreover, there are no reasons of a general character, as defined in Article 37 § 1 *in fine*, which would require the further examination of the case by virtue of that provision. Accordingly, the Government invites the Court to strike the application out of its list of cases."

By a letter of 3 December 2019, the applicants indicated that they were not satisfied with the terms of the unilateral declaration. In particular, they contended that the issues raised in the present application have not been determined by the Court in previous cases against the respondent Government and that the Government's unilateral declaration did not address the problems underlying the alleged violations of the Convention.

The Court observes that Article 37 § 1 (c) enables it to strike a case out of its list if:

> "... for any other reason established by the Court, it is no longer justified to continue the examination of the application."

Thus, it may strike out applications under Article 37 § 1 (c) on the basis of a unilateral declaration by a respondent Government even if the applicants wish the examination of the case to be continued (see, in particular, the *Tahsin Acar v. Turkey* judgment (preliminary objections) [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI).

The Court has established clear and extensive case-law concerning complaints relating to the domestic authorities' interference with religious

meetings held on private premises (see, for example, *Kuznetsov and Others v. Russia*, no. 184/02, §§ 52-75, 11 January 2007, and *Krupko and Others v. Russia*, no. 26587/07, §§ 47-57, 26 June 2014).

Noting the admissions contained in the Government's declaration as well as the amount of compensation proposed – which is consistent with the amounts awarded in similar cases – the Court considers that it is no longer justified to continue the examination of the application (Article 37 § 1 (c)).

In the light of the above considerations, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the application (Article 37 § 1 *in fine*).

Finally, the Court emphasises that, should the Government fail to comply with the terms of their unilateral declaration, the application may be restored to the list in accordance with Article 37 § 2 of the Convention (see *Josipović v. Serbia* (dec.), no. 18369/07, 4 March 2008).

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Takes note of the terms of the respondent Government's declaration and of the arrangements for ensuring compliance with the undertakings referred to therein;

Decides to strike the application out of its list of cases in accordance with Article 37 § 1 (c) of the Convention.

Done in English and notified in writing on 11 February 2021.

{signature_p_2}

Liv Tigerstedt Acting Deputy Registrar	Ganna Yudkivska President

APPENDIX

Application raising complaints under Articles 5, 8, 9, 11 and 14 of the Convention

Application no. Date of introduction	Applicant's name Year of birth	Date of receipt of Government's declaration	Date of receipt of applicants' comments, if any	Amount awarded for non-pecuniary damage per applicant (in euros)[1]
17374/16 29/03/2016 (4 applicants)	**Nijat Adil oglu PANAHOV** 1990 **Shalala Murad gizi ATAMOVA** 1962 **Lala Mughdat gizi YUSIFOVA** 1978 **Mehpara Aydin gizi JAFAROVA** 1981	04/11/2019	03/12/2019	4,000

[1] Plus any tax that may be chargeable to the applicants.